

26STCV16659 26STCV16659

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 26STCV16659 Hearing Date: September 10, 2026 Dept: 512

Case Number: 26STCV16659

Case Name: Christopher Monroe v. Octavian Properties, LLC,
et. al.

EX PARTE APPLICATION FOR
ORDER PERMITTING ALTERNATIVE SERVICE OF SUMMONS AND COMPLAINT ON DEFENDANTS
LEGAL DEFENSE INVESTIGATIONS & MEDIATION SERVICES AND OTIS COOPER

EX PARTE APPLICATION IS
DENIED WITHOUT PREJUDICE.

Pursuant to Code of Civil

Procedure section 166 (a)(1), the Court will not entertain oral argument for ex
parte application for relief.

The Court finds that

Plaintiff has not established reasonable diligence under Code of Civil

Procedure section 413.30(a)(1) to allow service of Summons and Complaint via email.

The declaration also does not detail all attempts to serve either defendant by
each of the methods prescribed by statute, including facts demonstrating why
each method was unsuccessful at every address or location where the defendant
is likely to be found. (See CCP
413.30(a)(2).) Additionally, the
Declaration does not address efforts to serve an individual separate and apart
from the corporation.

Furthermore,

moving party needs to make a showing of all investigative tools made to locate the defendants, as follows:

1. Investigating (attempt to serve, check for forwarding address at the post office, etc.) all addresses and phone numbers (call each number) that have been valid for the last two (2) years.

2. Checking internet pages of service providers that provide data for locating people (Intelius, Spokeo, etc.), investigating results, and attaching printouts from the search.

3. Providing process server's declaration for any attempted service(s) of process.

4. Checking real property ownership records, investigating and explaining results.

5. Checking the local post office for change of address information by submitting a form to the post office and returning stamped form.

6. Mailing a copy of the Summons and Complaint (or Petition) to defendant's last known address by regular first class mail pursuant to CCP § 415.30 and submitting a declaration attesting to that fact.

7. Providing print-outs of the searches and submitting them as exhibits.

8. Efforts to serve officers of the corporation pursuant to CCP § 416.10(b)

9. Efforts to serve pursuant to CCP § 416.10(d).

For the foregoing reasons,
the Ex Parte application is DENIED WITHOUT PREJUDICE.

Moving party is to give
notice of ruling.